

CIVIL PARTNER VISA



LOCATION: [HOME](#) » [PERSONAL IMMIGRATION](#) » [PARTNER & FAMILY VISAS](#) » [CIVIL PARTNER VISA](#)

UK Civil Partner Visa: Requirements, Process & How to Apply

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In This Guide

1. [UK Civil Partner Visa: Eligibility Criteria](#)
2. [Sponsor Requirements for a Civil Partner Visa](#)
3. [Minimum Age Requirement for Civil Partners](#)
4. [UK Civil Partner Visa Relationship Requirements](#)
5. [What Is a Prohibited Degree of Relationship?](#)
6. [Requirement to Have Met in Person](#)
7. [Is Your Civil Partnership Recognised in the UK?](#)
8. [Proving a Genuine and Subsisting Relationship](#)
9. [Proving Your Intention to Live Together in the UK](#)
10. [Previous Relationships Must Be Permanently Ended](#)
11. [UK Civil Partner Visa Financial Requirement](#)
12. [Civil Partner Visa UK Accommodation Requirement](#)
13. [English Language Requirement for Civil Partner Visa](#)
14. [Common Reasons for Civil Partner Visa Refusal](#)

- [15. How to Strengthen Your Civil Partner Visa Application](#)
- [16. UK Civil Partner Visa Supporting Documents Checklists](#)
- [17. Civil Partner Visa UK Application Fees](#)
- [18. Civil Partner Visa Processing Times \(UK & Abroad\)](#)
- [19. Civil Partner Visa Validity and Duration](#)
- [20. Switching to the Civil Partner Visa Route in the UK](#)
- [21. Bringing Children on a UK Civil Partner Visa](#)
- [22. Right to Work on a UK Civil Partner Visa](#)
- [23. Applying for ILR as a Civil Partner](#)
- [24. Life After a Civil Partner Visa: What Happens Next?](#)
- [25. Special Scenarios](#)
- [26. How Changes in Immigration Rules Could Affect You](#)
- [27. UK Civil Partner Visa FAQs](#)
- [28. How Our Immigration Barristers Can Help](#)
- [29. Contact Richmond Chambers Immigration Barristers](#)

The UK Civil Partner Visa is a route for individuals who are in a genuine and subsisting civil partnership with a British citizen, an Irish citizen residing in the UK, a person who is settled in the UK (holding indefinite leave to remain or permanent residence), a person with pre-settled status under the EU Settlement Scheme, a Turkish Businessperson or Turkish Worker with limited leave to remain under the former European Communities Association Agreement, or a person who has been granted refugee status or humanitarian protection in the UK.

The UK Civil Partner Visa enables applicants to enter or remain in the UK in order to live together with their civil partner on a long-term basis. An application may also be made where the civil partner is currently overseas but intends to return to the UK with the applicant in order to resume their life together.

A successful application for a Civil Partner Visa places the applicant on a five-year route to settlement in the UK. Indefinite leave to remain may be granted

following five years of continuous residence in the UK under the route, provided that the requirements of the Immigration Rules continue to be met throughout the qualifying period.

1. UK Civil Partner Visa: Eligibility Criteria

In order to qualify for a UK Civil Partner Visa, you will need to satisfy UK Visas and Immigration that you meet the following requirements:

- Your partner is a British citizen, an Irish citizen residing in the UK, a person who is settled in the UK (meaning they hold indefinite leave to remain or permanent residence), a person with pre-settled status under the EU Settlement Scheme, a Turkish Businessperson or Turkish Worker with limited leave under the former European Communities Association Agreement or an individual granted refugee status or humanitarian protection in the UK;
- You and your partner are both over the age of 18;
- You and your partner are not within a prohibited degree of relationship;
- You and your partner have met in person;
- You and your partner are legally in a civil partnership that is recognised in the UK;
- Your relationship is genuine and subsisting;
- You and your partner intend to live together permanently in the UK;
- Any previous relationship has broken down permanently;
- You satisfy a financial requirement;
- There is adequate accommodation for you and any dependents;
- You speak and understand English to a required level.

The exact requirements that apply to your application may vary depending on your individual circumstances. Given the complexity of the Immigration Rules and the evidential requirements involved, we recommend seeking expert legal advice to ensure that your application is properly prepared and stands the best chance of success.

To discuss your UK Civil Partner Visa application with one of our immigration barristers, contact our UK Civil Partner Visa lawyers on 0203 617 9173 or complete our enquiry form below.

2. Sponsor Requirements for a Civil Partner Visa

In order to qualify for a UK Civil Partner Visa, your sponsoring partner must fall within one of the categories recognised under the Immigration Rules. Specifically, your partner must either:

- Be a British citizen or an Irish citizen who is present and settled in the UK or returning to the UK with you to reside together;
- Hold indefinite leave to remain, permanent residence, or settled status in the UK, including those being admitted for settlement on the same occasion as your application;
- Have pre-settled status under Appendix EU to the Immigration Rules;
- Have limited leave to remain under the terms of the former European Communities Association Agreement (ECAA) as a Turkish Businessperson or Turkish Worker; or
- Have been granted refugee status or humanitarian protection in the UK; or
- Be in the UK with permission as a Stateless person.

Where your partner is a British citizen who is currently abroad, they may still act as your sponsor provided that they intend to return to the UK with you to live together permanently. Similarly, where your partner is being granted indefinite leave to remain (settlement) at the same time as your application is decided, they may be treated as settled for the purposes of the sponsorship requirement.

3. Minimum Age Requirement for Civil Partners

You and your partner must both be over the age of 18 on the date when you submit your Civil Partner Visa application.

4. UK Civil Partner Visa Relationship Requirements

The UK Civil Partner Visa relationship requirement has various elements to it:

- You and your partner must not be within a prohibited degree of relationship;
- You and your partner must have met in person;
- You and your partner must be legally in a valid civil partnership;
- Your relationship must be genuine and subsisting;
- You and your partner must intend to live together permanently in the UK;
- Any previous relationship must have broken down permanently.

5. What Is a Prohibited Degree of Relationship?

In order to qualify for a UK Civil Partnership Visa, you and your civil partner must not be within a prohibited degree of relationship as defined in the Marriage Act 1949, the Marriage (Prohibited Degrees of Relationship) Act 1986 and the Civil Partnership Act 2004.

This means that you and your civil partner must not be related in any of the following ways:

- Adoptive child
- Adoptive parent
- Child
- Former adoptive child
- Former adoptive parent
- Grandparent
- Grandchild
- Parent
- Parent's sibling
- Sibling
- Sibling's child

In this list 'sibling' means a brother, sister, half-brother or half-sister.

A civil partnership between a person and any person in the following list will not qualify for a Civil Partner Visa until both parties are aged 21 or over, and provided that the younger party has not at any time before attaining the age of 18 been a child of the family in relation to the other party:

- Child of former civil partner
- Child of former spouse
- Former civil partner of grandparent
- Former civil partner of parent
- Former spouse of grandparent
- Former spouse of parent
- Grandchild of former civil partner
- Grandchild of former spouse

A child of the family, in relation to another person, means a person who has lived in the same household as that other person, and has been treated by that other person as a child of his family.

6. Requirement to Have Met in Person

You and your civil partner must have met in person. The requirement to have 'met' means that you must be able to demonstrate a face-to-face meeting which resulted in the making of a mutual acquaintance. Simply coming face-to-face followed by telephone or written contact would not satisfy the requirements for a UK Civil Partner Visa.

7. Is Your Civil Partnership Recognised in the UK?

In order to qualify for a UK Civil Partner Visa, you and your partner must have entered into a civil partnership that is recognised as valid under UK law. The recognition of a civil partnership depends on where it was formed and whether it meets the relevant statutory requirements.

UK Civil Partnerships: Legal Requirements

To be recognised in the UK, a civil partnership entered into within the UK must comply with the provisions of the [Civil Partnership Act 2004](#). This means that the partnership must be monogamous and must be formed in accordance with prescribed formalities, including the giving of notice, registration at a designated venue authorised to conduct civil partnerships, and the presence of an authorised registrar at the time of registration.

In England and Wales, both parties must have been at least 18 years old at the time of the civil partnership (this minimum age was raised from 16 to 18 on 27 February 2023). In Scotland and Northern Ireland, the minimum age remains 16. A UK civil partnership must be evidenced by an official civil partnership certificate issued in accordance with UK law.

Overseas Civil Partnerships Recognised by the UK

A civil partnership formed outside the UK will be recognised as valid under UK law if all of the following conditions are met:

- The type of relationship is recognised as a civil partnership (or equivalent) under the law of the country in which it was formed;
- The civil partnership was lawfully conducted in accordance with the legal formalities of that country;

- There is no legal impediment under the law of either party's country of domicile at the time of the partnership which would have prevented the formation of the civil partnership;
- Any previous marriage or civil partnership entered into by either party has ended permanently.

Evidence of such a partnership must be provided in the form of a civil partnership certificate or a reasonable equivalent, valid under the law in force in the relevant country.

Overseas Relationships Treated as Civil Partnerships

In certain cases, an overseas relationship that is not expressly called a civil partnership may still be recognised as such under UK law. The Civil Partnership Act 2004 provides for the recognition of such relationships where the following criteria are satisfied:

- The relationship is formally registered with a competent authority in a country or territory outside the UK;
- Neither party is already married or in a civil partnership;
- The relationship is exclusive in nature and intended to be of indeterminate duration;
- The parties are treated as a couple or as if married under the law of the country where the relationship was registered.

Schedule 20 to the [Civil Partnership Act 2004](#), as updated by [The Civil Partnership Act 2004 \(Overseas Relationships\) Order 2012](#), contains a list of overseas relationships that are automatically recognised as equivalent to UK civil partnerships for immigration and legal purposes.

- [Overseas Marriages & Civil Partnerships in UK Visa Applications](#)

8. Proving a Genuine and Subsisting Relationship

In order to qualify for a UK Civil Partner Visa you will need to provide the Home Office with evidence that your relationship with your partner is a [genuine and subsisting relationship](#).

Decisions on whether a relationship is genuine and subsisting are made on a case-by-case basis, taking into account all available evidence and individual circumstances.

Home Office Criteria for a Genuine Relationship

Factors which may be considered by the Home Office when determining whether your relationship is genuine and subsisting include:

- Whether you and your civil partner are in a current, long-term relationship;
- Whether you and your civil partner have been or are now living together;
- Whether you and your civil partner have children together (biological, adopted or step-children) and shared responsibility for them;
- Whether you and your civil partner share financial responsibilities;
- Whether you and your civil partner have visited the other's home country and family;
- Whether you and your civil partner have made definite plans concerning the practicalities of living together in the UK.

If the Home Office has doubts as to the genuine and subsisting nature of your relationship then it may undertake further checks, interview you and your civil partner or arrange a home visit.

Documents to Prove a Genuine Civil Partnership

The Home Office will expect to see significant evidence of regular contact, signs of affection and companionship, emotional support, and an abiding interest in each other's welfare and wellbeing.

In addition to a civil partnership certificate, the Home Office will expect to see evidence of cohabitation. Documents should ideally be in the name of you and your civil partner jointly. Alternatively, it is possible to rely on documents addressed to you both individually at the same address. Documents should be dated within the last few years and originate from a range of sources. Official documents are preferred, but if it is not possible to provide exclusively official documents then other documents proving cohabitation may also be submitted.

If you and your civil partner have not lived together for very long, it is also possible to provide unofficial evidence of a relationship, such as correspondence not from a governmental body, invoices, delivery confirmations and receipts.

As mentioned above, the Home Office will expect to see significant evidence of a genuine and subsisting relationship. If the Home Office has doubts as to the genuine and subsisting nature of your relationship then it may undertake further checks, interview you and your civil partner or arrange a home visit. If it has reasonable grounds to doubt that your relationship is genuine or subsisting then your Civil Partner Visa application will be refused.

Our immigration barristers regularly advise Civil Partner Visa applicants as to the documentary evidence that the Home Office will expect to see in order to be satisfied that their relationship is a real one, based on genuine affection and shared values, and that it is ongoing at the time of the application. We do not rely on templated lists of documents and only ever advise our clients on the documents needed to prove a genuine and subsisting relationship on the basis of their own personal circumstances.

- [What is a Genuine and Subsisting Relationship?](#)
- [Genuine and Subsisting Relationship Requirement](#)

9. Proving Your Intention to Live Together in the UK

In order to qualify for a UK Civil Partner Visa, UK Visas and Immigration must be satisfied that you and your civil partner intend to live together permanently in the UK. This is a fundamental requirement under Appendix FM of the Immigration Rules and must be evidenced both at the initial application stage and in any subsequent applications for further leave to remain or indefinite leave to remain.

At the time of your initial application, you and your civil partner must clearly express a mutual commitment to live together permanently in the UK. This intention must apply from the point of grant of the visa or, where appropriate, as soon as circumstances reasonably allow. Evidence of this intention may include plans for shared accommodation, relocation arrangements, and any preparations made to begin living together in the UK.

When applying for further leave to remain or indefinite leave to remain as a civil partner, the Home Office will assess whether your conduct has been consistent with an intention to live together in the UK on a permanent basis. While short periods of absence from the UK are permitted, any prolonged or frequent absences – particularly if one partner resides primarily overseas – may cast doubt on whether the relationship continues to meet the requirement for cohabitation in the UK.

Time spent outside the UK will be evaluated in light of its duration, frequency, purpose, and whether the couple remained together during such absences. Absences for good reason – such as work-related travel, holidays, training, or study – may be accepted, provided they are consistent with a genuine intention to live together in the UK on a permanent basis.

- [Residence Requirements for Partners](#)

10. Previous Relationships Must Be Permanently Ended

In order to qualify for a Civil Partner Visa, UK Visas and Immigration must be satisfied that neither you nor your civil partner is married to, or in a civil partnership with, another person at the date of application. This is a mandatory requirement under Appendix FM of the Immigration Rules.

If either you or your civil partner has previously been married or in a civil partnership, you will be required to provide official evidence that the marriage or civil partnership has been legally and permanently dissolved. Acceptable evidence may include a decree absolute, civil partnership dissolution order, or an equivalent legal document issued by a competent authority in the relevant jurisdiction.

If you or your partner remain legally married to or in a civil partnership with another person, you will not qualify for a Civil Partner Visa. However, if the previous relationship has broken down permanently and you are now in a genuine and subsisting relationship with your new partner, you may be eligible to apply under the [Unmarried Partner Visa](#) route instead. In such cases, you will need to demonstrate that your current relationship has endured for at least two years, that it is akin to a marriage or civil partnership, and that any previous relationship has irretrievably broken down, even if it has not yet been legally dissolved.

- [Spouse, Partner and Family Visa Success Stories](#)
- [Partner Visa Extension & ILR Application Top Tips](#)

11. UK Civil Partner Visa Financial Requirement

In order to qualify for a UK Civil Partner Visa, you must demonstrate that you can be adequately maintained in the UK without recourse to public funds. This means satisfying the financial requirement set out under Appendix FM of the Immigration Rules.

Unless exempt, you will need to show that your sponsoring civil partner – *or both of you jointly, if you are in the UK with permission to work* – has a gross annual income of at least £29,000. This is the current minimum income threshold for civil partner visa applications and applies whether you are applying for entry clearance, an extension of stay, or indefinite leave to remain. There is no longer a separate child element to the financial requirement unless transitional provisions apply. Applicants who were granted permission in the civil partner route before 11 April 2024 continue to be assessed under the previous threshold of £18,600.

If your sponsor is in receipt of certain specified [state benefits or entitlements](#) – such as Disability Living Allowance, Personal Independence Payment, or Carer's

Allowance – they may be exempt from meeting the standard minimum income threshold of £29,000.

In such cases, the financial requirement is met instead by demonstrating that you and your sponsor can be adequately maintained in the UK without recourse to public funds. This is assessed using the “adequate maintenance” test, rather than the fixed income threshold.

The Immigration Rules relating to the financial requirement are detailed and prescriptive. You must provide specific categories of evidence, in accordance with Appendix FM-SE. Failure to do so is one of the most common reasons for refusal. The burden of proof lies with the applicant to demonstrate that the financial requirement is met.

How to Meet the UK Civil Partner Visa Financial Requirement

The financial requirement for a UK Civil Partner Visa can be met in a number of different ways, including.

- Income from **salaried** or non-salaried employment of your civil partner (and/or you if you are in the UK with permission to work);
- **Non-employment income**, for example, income from property rental or dividends from shares;
- **Cash savings** of your partner and/or yourself, above £16,000, held by your civil partner and/or you for at least 6 months and under their / your control;
- State (UK or foreign), occupational or private **pension** of your civil partner and/or yourself;
- Income from **self-employment**, and income as a **director or employee of a specified limited company** in the UK, of your civil partner (and/or you if you are in the UK with permission to work).

In some circumstances it is possible to rely on a **combination of the above sources of income** to satisfy the financial requirement.

As mentioned above, different considerations will apply if your civil partner is in receipt of certain **state benefits or entitlements**.

Also, Civil Partner Visa applicants relying on cash savings to satisfy the Civil Partner Visa financial requirement may wish to keep in mind that the level of cash savings required in an entry clearance and extension application is different from the level required when **applying for indefinite leave to remain**.

- **Employment income** from **salaried** or non-salaried employment of your civil partner (and/or yourself, if you are in the UK and have permission to work);
- **Non-employment income**, such as rental income from property or dividend income from shares;
- **Cash savings** held by you and/or your partner, above a base threshold of £16,000, provided the funds have been held for at least six months and are under your control;
- **Pension income**, including state, occupational or private **pensions** received by you and/or your partner;
- **Self-employment income**, or income from being a **director or employee of a specified limited company** in the UK.

In some cases, a **combination of the above sources of income** can be used to satisfy the financial requirement. However, detailed rules govern how income from different sources can be combined, and over what period evidence must be provided.

It is also important to note that different levels of cash savings are required depending on the nature of the application. For example, a higher level of savings is required to meet the financial requirement solely through savings in an initial visa or extension application than in an **application for indefinite leave to remain**.

Financial Requirement Exemptions and Exceptions

In exceptional cases, where refusal of a Civil Partner Visa application would amount to a breach of Article 8 of the European Convention on Human Rights (ECHR) – the right to respect for private and family life – the Home Office may consider **other credible and reliable sources of income, financial support or funds** available to the couple, even if the financial requirement is not strictly met. These cases are considered under the ‘exceptional circumstances’ provisions of Appendix FM.

Given the complexity of the financial requirement and the strict documentary rules that apply, many applicants benefit from expert legal advice to ensure that the correct evidence is submitted in the correct format.

Our immigration barristers are specialists in the Civil Partner Visa financial requirement and regularly assist clients in preparing strong, compliant applications that meet the necessary evidential thresholds under the Immigration Rules.

To discuss your UK Civil Partner visa application with one of our immigration barristers, contact our UK Civil Partner visa lawyers on 0203 617 9173 or complete our enquiry form below.

12. Civil Partner Visa UK Accommodation Requirement

Whether you are applying for entry clearance or for further leave to remain as a civil partner, you will need to provide evidence that there will be adequate accommodation available to you and your civil partner, without the need to rely on public funds, in accommodation which you own or occupy exclusively.

You will need to provide evidence as to the basis on which the property is owned or occupied, that you are legally and exclusively entitled to occupy the property and that the property will not be overcrowded or contravene public health regulations.

- [The UK Family Visa Accommodation Requirement](#)
- [Meeting the Accommodation Requirement: UK Spouse or Fiance Visa](#)

13. English Language Requirement for Civil Partner Visa

Unless exempt, as part of your Civil Partner Visa application you will need to satisfy the Home Office that you satisfy an English language requirement.

How to Meet the English Language Requirement

When applying for entry clearance or to switch into the Civil Partner Visa route you will need to demonstrate competence in the English language to at least CEFR level A1. When you apply for further leave to remain as a civil partner you will need to demonstrate competence in the English language to at least CEFR level A2.

You can meet the Civil Partner Visa English language requirement by:

- Holding the nationality of a majority English speaking country;
- Passing an approved English language test at or above the required CEFR level, with an approved provider as set out on [Approved Secure English Language Tests and Test Centres](#); or
- Having an academic qualification which is either a Bachelor's or Master's degree or PhD if awarded in the UK; or, if awarded outside the UK, is deemed by Ecctis (formerly UK NARIC) to meet or exceed the recognised standard of a

Bachelor's or Master's degree or PhD in the UK, and Ecctis (formerly UK NARIC) has confirmed that the degree was taught or researched in English at or above the required CEFR level.

Exemptions from the English Language Requirement

In order to be exempt from the English language requirement you will normally have to prove that either:

- You are over the age of 65 at the date of application;
- You have a physical or mental disability which prevents you from meeting the English language requirement;
- There are exceptional circumstances which mean that you cannot satisfy the English language requirement before entering the UK.

If you are not able to demonstrate that you meet the English language requirement (or are exempt), then your Civil Partner Visa application will be refused.

- [Family & Partner Visa English Language Requirement](#)

14. Common Reasons for Civil Partner Visa Refusal

Civil Partner Visa applications are frequently refused because applicants fail to meet the strict requirements of the Immigration Rules or do not provide adequate supporting evidence. The Home Office assesses both eligibility and evidential compliance, and any shortcomings in either area can result in refusal.

One of the most common grounds for refusal is the failure to demonstrate that the relationship is genuine and subsisting. This is particularly likely where there is insufficient or inconsistent evidence of cohabitation, communication, or ongoing contact – especially in cases involving long-distance relationships or periods of separation.

The financial requirement is another frequent source of difficulty. Applications are often refused where the required financial documents are incomplete, incorrectly formatted, out of date, or inconsistent with the applicant's claims. Even minor deviations from the documentary standards set out in Appendix FM-SE can lead to refusal.

Other common reasons for refusal include failure to meet the English language requirement, failure to provide adequate evidence of suitable accommodation, or

concerns relating to the applicant's or sponsor's immigration history, criminal record, or general suitability under the Immigration Rules.

Given the complexity of the rules and the high standard of proof required, careful preparation and the submission of detailed, well-organised evidence is essential. Tailored legal advice can help applicants identify and address potential weaknesses in their case and significantly improve the prospects of a successful outcome.

15. How to Strengthen Your Civil Partner Visa Application

A successful Civil Partner Visa application depends not only on meeting the Immigration Rules but also on presenting clear, consistent, and well-organised evidence. Careful preparation is essential to ensuring a positive outcome.

Supporting documents must be correctly formatted, up to date, and cover the relevant periods. Evidence of your relationship should be varied and detailed, demonstrating regular communication, time spent together, shared financial responsibilities, and future plans. Where there are gaps or unusual circumstances, these should be explained clearly and proactively.

In addition to relationship evidence, it is equally important to meet the financial and accommodation requirements with precise, compliant documentation.

A detailed and well-structured covering letter is strongly recommended. A good covering letter can highlight how all requirements are satisfied, cross-reference the supporting documents, and help guide the Home Office caseworker through your application.

To discuss your UK Civil Partner Visa application with one of our immigration barristers, contact our UK Civil Partner Visa lawyers on 0203 617 9173 or complete our enquiry form below.

16. UK Civil Partner Visa Supporting Documents Checklists

The most common reason for a Civil Partner Visa application to be refused is because the applicant fails to include sufficient documentary evidence in support of their application.

The Immigration Rules contain strict requirements in terms of the documents that must be submitted in support of a UK Civil Partner Visa application. Every case is different and the required supporting documents for a Civil Partner Visa application will vary from case to case.

Applicants should be very careful when using pre-prepared document checklists for Civil Partner Visa applications. Advice from an immigration lawyer will ensure that the documents listed are appropriate for individual circumstances.

At the same time, if a required document is not provided, is in the wrong format or does not contain all mandatory information then the application for a Civil Partner Visa may be refused. Appeals can take many months to be determined and the outcome may be uncertain. A fresh application will involve further cost and additional delay.

Our immigration barristers provide expert advice to Civil Partner Visa applicants in relation to the documents required for a successful Civil Partner Visa application and also check supporting documents for compliance with the Immigration Rules.

17. Civil Partner Visa UK Application Fees

When preparing to apply for a Civil Partner Visa, it is important to plan carefully and budget for all associated costs. In addition to the Home Office application fee and Immigration Health Surcharge (IHS), applicants may face further expenses such as English language testing fees, translation and certification of documents, property inspection reports, and, where appropriate, legal fees for professional advice and representation.

The main mandatory fees are currently as follows: the Home Office application fee for a Civil Partner Visa submitted outside the UK is £1,938, while the fee for applications made from within the UK is £1,321. The Immigration Health Surcharge is currently £1,035 per year for most applicants, payable upfront for the full duration of the visa.

Additional optional costs may arise, such as fees for using the Priority or Super Priority services for faster decision-making, or obtaining specialist property inspection reports to meet the accommodation requirement.

By understanding and budgeting for all potential costs in advance, applicants can help ensure a smoother application process and avoid unnecessary delays or complications.

18. Civil Partner Visa Processing Times (UK & Abroad)

The current Home Office processing time for a Civil Partner Visa application submitted outside the UK is 12 weeks. If you apply via the Priority Service then you will usually receive a decision within 30 working days. There is no Super Priority Service for out-of-country applications.

Applications to switch into or extend as a civil partner submitted from within the UK are currently being decided by the Home Office within 8 weeks. However, if you do not satisfy the minimum income or English language requirements then it may take about 12 months to receive a decision.

There is no 5 working day Priority Service for in-country civil partner applications, but if you apply via the Super Priority Service then you should receive a decision by the end of the next working day.

Can I Visit the UK While My Civil Partner Visa Application Is Pending?

If you are applying for a Civil Partner Visa from outside the UK, you may wish to visit your partner while your application is being processed. Whether this is possible depends on your nationality and carries some risk.

Visa nationals (those who require a visa to visit the UK) cannot travel as visitors while their Civil Partner Visa application is under consideration. Submitting a visit visa application is treated by the Home Office as withdrawing the partner visa application due to its 'one application at a time' policy.

Non-visa nationals may be able to visit the UK without applying for a visitor visa, provided they can show they intend to return home after a short stay. However, if a border officer believes you intend to remain in the UK rather than make a temporary visit, you may be refused entry, and this could also negatively impact your partner visa application.

To reduce the risk, non-visa nationals should carry clear evidence of their intention to leave the UK—such as booked return travel and proof of ties to their home country. You should also select the 'Keep My Passport' service when submitting your Civil Partner Visa application, allowing you to retain your passport for travel during processing.

We regularly provide letters of support to assist clients wishing to visit their partner while waiting for a decision. Legal advice is strongly recommended before making any travel plans.

- [Can I Visit the UK While My Partner Visa Is Being Processed?](#)

19. Civil Partner Visa Validity and Duration

If your application for a UK Civil Partner Visa is successful, your civil partner visa will be valid for 33 months initially. If you apply for leave to remain in the UK as a civil partner then you will be granted leave valid for 30 months.

Before your initial grant of leave expires, you will need to apply to UK Visas and Immigration to extend your stay. If your application for further leave to remain as a civil partner is successful then you will be granted further leave to remain for a period of 30 months.

After spending 5 years in the UK as a civil partner, you will be eligible to apply for indefinite leave to remain.

20. Switching to the Civil Partner Visa Route in the UK

An application for leave to remain as a civil partner can be made from within the UK, unless you are in the UK as a visitor or, with few exceptions, with valid leave granted for a period of 6 months or less.

Visitors who wish to settle in the UK with their civil partner should leave the UK and apply for entry clearance as a civil partner from overseas.

If you are in the UK with permission as a proposed civil partner or were granted leave pending the outcome of family court or divorce proceedings then, exceptionally, you can apply for leave to remain as a civil partner from within the UK.

21. Bringing Children on a UK Civil Partner Visa

Dependent children can be included in a Civil Partner Visa application if they are under the age of 18, are not married or living independently, and form part of the family unit.

In addition to meeting the relationship requirements, sponsors must demonstrate that the family can be adequately maintained and accommodated without relying on public funds. No additional financial threshold applies when children are included in an application.

Applicants will need to provide evidence of the child's relationship to the sponsoring civil partner. Where only one parent is joining the family in the UK,

evidence of sole responsibility for the child's upbringing may also be required. The Home Office will assess the best interests of the child when making its decision.

Children who are already in the UK with valid leave may usually be included in an in-country application. Children who are overseas will typically need to apply for entry clearance at the same time as the main applicant.

Given the additional requirements involved in applications including children, seeking expert advice can be invaluable.

22. Right to Work on a UK Civil Partner Visa

Civil Partner Visa holders have a full right to work in the UK.

23. Applying for ILR as a Civil Partner

If your Civil Partner Visa application is successful, you will initially be granted permission to enter the UK for a period of two and a half years (plus an additional three months if applying for entry clearance). You will need to make an extension application before the expiry of your leave. If your civil partner extension application is successful then you will be granted further leave for a period of two and a half years.

After spending 5 years (60 months) in the UK on the Civil Partner Visa route, you may be eligible to apply for indefinite leave to remain in the UK.

In order to qualify for indefinite leave to remain as a civil partner you will need to demonstrate, in addition to the above requirements, that:

- Since you have been in the civil partner category you have lived together with your civil partner in the UK or there is good reason, consistent with a continuing intention to live together permanently in the UK, for any period when you have not done so;
- You meet the higher CEFR Level B1 English Language requirement that applies to settlement applications;
- You have passed the [Life in the UK test](#) (unless exempt).

If you make an application for indefinite leave to remain as a civil partner but do not satisfy the above requirements, UK Visas and Immigration will go on to consider if you meet the requirements for a further extension of stay as a civil partner.

24. Life After a Civil Partner Visa: What Happens Next?

Being granted indefinite leave to remain (ILR) in the UK is a major milestone. Once you have ILR, you are no longer subject to immigration control and can live, work and study in the UK without restriction.

When Can I Apply for a British Passport or Citizenship?

If you are the civil partner of a British citizen, you may be eligible to apply for British citizenship immediately after being granted ILR. If your partner is not a British citizen, you will usually need to hold ILR for 12 months before applying for naturalisation. In both cases, you must still meet the usual naturalisation requirements, including residence, good character, and passing the Life in the UK Test.

25. Special Scenarios

Some Civil Partner Visa applicants may face complex circumstances, such as past criminal convictions, immigration breaches, or the breakdown of their relationship before settlement. While these factors can present additional challenges, careful preparation and expert advice can still lead to a successful outcome.

What If My Relationship Breaks Down Before ILR?

Leave as a civil partner is granted on the basis of a genuine and continuing relationship. If the relationship breaks down before you are eligible for indefinite leave to remain, this can have serious immigration consequences.

Both you and your sponsoring partner must notify the Home Office of any change in circumstances. Failure to do so may negatively affect the outcome of future immigration applications. Once informed, the Home Office may curtail your leave, and you may be required to leave the UK unless you qualify for permission to remain on another basis.

Depending on your individual circumstances, you may be able to apply under the private life route, as a parent of a British child, or under the domestic violence concession if domestic abuse has occurred. It may also be possible to remain in the UK on human rights grounds where removal would cause significant hardship.

Given the potentially serious impact of a relationship breakdown on your immigration status, seeking legal advice at an early stage is strongly recommended.

Applying with a Criminal Record or Immigration Breaches



If you or your partner have a criminal record or immigration history concerns, early legal advice is essential. Certain convictions or breaches of immigration law may affect your eligibility for a Civil Partner Visa or settlement in the UK. The Home Office will assess the nature, seriousness, and timing of any offences or immigration breaches when considering your application.

Full disclosure of any such issues at the earliest opportunity will allow an immigration lawyer to assess the risks and advise you on how best to proceed. In some cases, it may still be possible to obtain or retain leave to remain, but careful preparation and expert legal representation will be crucial.

26. How Changes in Immigration Rules Could Affect You

The UK's [Immigration Rules](#) are subject to regular changes, which may affect future applications for visa extensions or settlement. Updates may include adjustments to the financial requirement, English language standards, eligibility criteria, or evidential requirements.

For example, the minimum income threshold and English language levels required for indefinite leave to remain can change over time. The Home Office may also revise the documents needed to prove a genuine relationship or establish continuous residence.

Applications are decided based on the Immigration Rules in force at the date of decision. Civil Partner Visa holders should therefore stay informed about any changes that could impact their eligibility to extend their stay or apply for indefinite leave to remain. Regularly reviewing your immigration position and seeking early legal advice can help ensure that you continue to meet the requirements and avoid unexpected issues.

27. UK Civil Partner Visa FAQs

Who can apply for a UK Civil Partner Visa?



What visa do I need to register a civil partnership in the UK?



How do I apply for a Civil Partner Visa?



Can I apply from within the UK?



Will my overseas civil partnership be recognised in the UK?



Are civil partnerships treated the same as marriages for immigration purposes?



What are the visa fees and associated costs?



What happens if my Civil Partner Visa application is refused?



Does a Civil Partner Visa lead to settlement in the UK?



What if I do not meet all the Civil Partner Visa requirements?



28. How Our Immigration Barristers Can Help

Applying for a UK Civil Partner Visa can be legally complex, evidentially demanding, and emotionally challenging. At Richmond Chambers, our specialist immigration barristers provide expert advice, meticulous application preparation, and effective representation to help civil partners navigate the visa process with confidence and clarity.

Civil Partner Visa Advice and Representation

If you are considering applying for a UK Civil Partner Visa, or have had a visa refused, we can:

- Assess your eligibility for entry clearance, leave to remain, or indefinite leave to remain as a civil partner;
- Advise on meeting the relationship, accommodation, English language, and financial requirements of the Immigration Rules;
- Assist with compiling the required supporting documents, including where the financial evidence is complex or falls outside standard categories;
- Prepare and submit a detailed, well-evidenced visa application with comprehensive legal representations;
- Advise on options following a refusal, including administrative review, re-application, or appeal to the First-tier Tribunal.

Our approach is strategic, thorough, and focused on securing successful outcomes while minimising delay, stress, and uncertainty for you and your partner.

Support with Complex Financial Circumstances

We regularly assist applicants who face challenges in meeting the financial requirement, including:

- Combining income from multiple sources or employment types;
- Relying on self-employment income, dividends, pensions, or savings;
- Demonstrating financial support in cases involving overseas sponsors or non-traditional employment patterns.

We understand the evidential pitfalls in such cases and provide tailored advice to ensure compliance with Appendix FM-SE of the Immigration Rules.

Extension, Settlement & Switching Applications

We also provide expert assistance with:

- Civil Partner Visa extension applications before expiry of the initial 33- or 30-month grant;
- Applications for indefinite leave to remain (ILR) as a civil partner after five years' residence;
- Switching into the Civil Partner route from other immigration categories, where permitted under the Rules.

Appeals Against Civil Partner Visa Refusals

If your UK Civil Partner Visa application has been refused, our immigration barristers can:

- Review the refusal decision and advise on the merits of an appeal to the First-tier Tribunal;
- Prepare detailed grounds of appeal and supporting legal submissions;
- Assist with the preparation of evidence, including witness statements and appeal bundles;
- Represent you and your partner at your appeal hearing before the Immigration and Asylum Chamber.

We have a strong track record of success in challenging refusals, and provide calm, strategic guidance throughout the appeal process.

Whatever stage you are at in your immigration journey as a civil partner, our barristers offer clear, reliable guidance and professional support throughout the process.

29. Contact Richmond Chambers Immigration Barristers

At Richmond Chambers, we pride ourselves on being approachable, responsive, and proactive in understanding and meeting our clients' needs. We are a highly driven team, committed to delivering clear and reliable immigration advice as part of a professional and friendly service.

To speak with one of our immigration barristers about your Civil Partner Visa application or appeal, please call us on +44 (0)20 3617 9173, email us at info@richmondchambers.com or complete our online enquiry form below.

WE CAN ALSO ASSIST WITH

Civil Partner Visa Eligibility Assessments



Preparation and Timing of Applications



Financial Requirement and Complex Evidence



Applications to Switch into the Civil Partner Route



Civil Partner Visa Extensions and Settlement Applications



Civil Partner Visa Refusals and Appeals



Applications for Children as Dependents



Support Following a Relationship Breakdown



WHAT CAN WE **HELP YOU WITH?**

To discuss your Civil Partner Visa application with one of our immigration barristers, contact our personal immigration team on 0203 617 9173 or complete our enquiry form below.

open

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What Visa Do I Need To Get Married in the UK?

By Stefania Patuto – Immigration Barrister
12 Sep 2025

If you currently reside outside of the UK and wish to marry or enter into a civil partnership in the UK, there are two main routes available: a Marriage or Civil Partner Visit visa or a Fiancé visa.



Partner Visa Financial Requirement: Savings, Investments and Pensions

By Isabella Reynard – Immigration Barrister
08 Sep 2025

For individuals applying under Appendix FM to enter or remain in the UK on the basis of their family life as the spouse or partner of a British citizen or settled person, meeting the UK spouse or partner visa financial requirement is essential.



Making a UK Spouse Visa Application: 10 FAQs

By Gillian McCall – Barrister Partner

05 Sep 2025

The UK Spouse Visa route allows married partners of British citizens and those settled in the UK to live together in the UK. It is also open...



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to top



immigration barristers

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